

--SUMMARY--

Decision No. 550/19

13-Aug-2019

M.Crystal

- In the course of employment (parking lots)
- Independent operator (truck driver)
- Right to sue
- Worker (test)

The plaintiff in a civil case was a truck driver. He slipped and fell in the lot of the defendant trucking company after completing a delivery and returning the truck to the lot. The defendant applied to determine whether the plaintiff's right of action was taken away.

The plaintiff had established a numbered company through which he entitled into a contract with the defendant. The trucks driven by the plaintiff were owned by the defendant. The factors were mixed as to whether the plaintiff was a worker or an independent operator. Overall, the Vice-Chair found that the plaintiff was a worker of the defendant.

The accident occurred in the defendant's lot. The plaintiff had returned the truck to the lot. At the time of the accident, the plaintiff had been waiting about 20 minutes for his daughter to pick him up. The fact that he was in the lot for about 20 minutes after finishing his assignment did not vitiate the reason for his presence in the lot. He was not loitering or carrying out any personal activity; rather, he was just waiting to be picked up. Leaving work was reasonably incidental to employment. The plaintiff was in the course of employment at the time of the accident.

The plaintiff's right of action was taken away.

12 Pages

References: Act Citation

- WSIA

Other Case Reference

- [w3819s]

Style of Cause:

Neutral Citation: 2019 ONWSIAT 1844



WORKPLACE SAFETY AND INSURANCE APPEALS TRIBUNAL

DECISION NO. 550/19

BEFORE: M. Crystal: Vice-Chair

HEARING: March 26, 2019 at Toronto
Oral

DATE OF DECISION: August 13, 2019

NEUTRAL CITATION: 2019 ONWSIAT 1844

APPLICATION FOR ORDER UNDER SECTION 31 OF THE *WORKPLACE SAFETY AND INSURANCE ACT, 1997*

APPEARANCES:

For the applicant: A. Cole, Lawyer

For the respondent: G. Siotas, Lawyer

Interpreter: L. Aita, Romanian

**Workplace Safety and Insurance
Appeals Tribunal**

505 University Avenue 7th Floor
Toronto ON M5G 2P2

**Tribunal d'appel de la sécurité professionnelle
et de l'assurance contre les accidents du travail**

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REASONS

(i) Introduction

[1] This is an application under section 31 of the *Workplace Safety and Insurance Act, 1997* (“the Act”) by the Applicant, who is one of the defendants in an action filed in Newmarket, in the Ontario Superior Court of Justice, as File No. CV-16-00125181-0000. The Respondent to this application is the plaintiff in the action. The respondent, Mr. C., testified at the application hearing and was represented by Mr. George Siotas, lawyer. The applicant, TC Inc., was represented by Mr. Avi Cole, lawyer. Submissions were provided by Mr. Cole and by Mr. Siotas. Ms. Lucy Aita, served as an interpreter of the Romanian language.

(ii) Issues

[2] The issue in this application is whether the Respondent’s right of action is taken away pursuant to section 31 of the Act. In order to determine this issue, the following questions must be answered:

1. At the time of the subject accident, was the Respondent a “worker” within the meaning of Act?
2. At the time of the subject accident, was the Respondent employed by a Schedule 1 employer?
3. At the time of the subject accident, was the Respondent in the course of his employment?
4. Is the Applicant a Schedule 1 employer?

(iii) Background

[3] In the circumstances of this application, the worker sustained personal injuries as a result of a slip and fall accident on January 11, 2014. At the time of the accident, the respondent, Mr. C., was a long haul truck driver, having completed a long haul delivery for the applicant, a trucking company. As noted above, one of the questions to be determined in this application is whether, at the time of the accident, the respondent was an independent operator or alternatively, was in a relationship of employment with the applicant, TC Inc., the trucking company.

[4] The respondent testified at the hearing. He stated that the accident occurred, in the evening, after the respondent had completed a long haul delivery and had returned the truck he was driving to the applicant’s yard. He testified that he had some difficulty parking the truck, which was owned by the applicant, because the yard was icy. He stated that before parking the truck, it became stuck in a depression in the yard surface, and he put chains on the tires of the truck, to obtain better traction. After applying the chains he was able to navigate the yard, and he parked the truck in an appropriate location in the yard.

[5] The respondent also testified that he called his daughter to come and pick him up at the applicant’s yard, and that when she arrived, he walked a short distance to her car. The respondent indicated that the lighting in the yard was poor, and that when he was inside the car driven by his daughter, he believed that he saw a personal belonging, such as a glove or a scarf,

which he thought he might have left in the area of the yard where he had applied chains to the truck tires. He testified that he left the car driven by his daughter and walked the short distance to the location where he believed that he had left the personal belonging. The respondent stated that, after inspecting the location, he realized that there was nothing there, and he returned to the car driven by his daughter. The respondent testified that when turned to return to his daughter's vehicle, he slipped on ice and sustained personal injuries, which included a broken leg.

(iv) Law and policy

[6] The accident which is the subject of this application occurred on January 11, 2014. Accordingly, the application is governed by the *Workplace Safety and Insurance Act, 1997* ("the Act").

[7] Section 31 of the Act provides that a party to an action or an insurer from whom statutory accident benefits (SABs) are claimed under section 268 of the *Insurance Act* may apply to the Tribunal to determine whether: a right of action is taken away by the Act; whether a plaintiff is entitled to claim benefits under the insurance plan; or whether the amount a party to an action is liable to pay is limited by the Act.

[8] Sections 26 through 29 of the Act provide the following:

26(1) No action lies to obtain benefits under the insurance plan, but all claims for benefits shall be heard and determined by the Board.

(2) Entitlement to benefits under the insurance plan is in lieu of all rights of action (statutory or otherwise) that a worker, a worker's survivor or a worker's spouse, child or dependant has or may have against the worker's employer or an executive officer of the employer for or by reason of an accident happening to the worker or an occupational disease contracted by the worker while in the employment of the employer.

27(1) Sections 28 to 31 apply with respect to a worker who sustains an injury or a disease that entitles him or her to benefits under the insurance plan and to the survivors of a deceased worker who are entitled to benefits under the plan.

(2) If a worker's right of action is taken away under section 28 or 29, the worker's spouse, child, dependant or survivors are, also, not entitled to commence an action under section 61 of the Family Law Act.

28(1) A worker employed by a Schedule 1 employer, the worker's survivors and a Schedule 1 employer are not entitled to commence an action against the following persons in respect of the worker's injury or disease:

1. Any Schedule 1 employer.
2. A director, executive officer or worker employed by any Schedule 1 employer.

(2) A worker employed by a Schedule 2 employer and the worker's survivors are not entitled to commence an action against the following persons in respect of the worker's injury or disease:

1. The worker's Schedule 2 employer.
2. A director, executive officer or worker employed by the worker's Schedule 2 employer.

(3) If the workers of one or more employers were involved in the circumstances in which the worker sustained the injury, subsection (1) applies only if the workers were acting in the course of their employment.

(4) Subsections (1) and (2) do not apply if any employer other than the worker's employer supplied a motor vehicle, machinery or equipment on a purchase or rental basis without also supplying workers to operate the motor vehicle, machinery or equipment.

29(1) This section applies in the following circumstances:

1. In an action by or on behalf of a worker employed by a Schedule 1 employer or a survivor of such a worker, any Schedule 1 employer or a director, executive officer or another worker employed by a Schedule 1 employer is determined to be at fault or negligent in respect of the accident or the disease that gives rise to the worker's entitlement to benefits under the insurance plan.
2. In an action by or on behalf of a worker employed by a Schedule 2 employer or a survivor of such a worker, the worker's Schedule 2 employer or a director, executive officer or another worker employed by the employer is determined to be at fault or negligent in respect of the accident or the disease that gives rise to the worker's entitlement to benefits under the insurance plan.

(2) The employer, director, executive officer or other worker is not liable to pay damages to the worker or his or her survivors or to contribute to or indemnify another person who is liable to pay such damages.

(3) The court shall determine what portion of the loss or damage was caused by the fault or negligence of the employer, director, executive officer or other worker and shall do so whether or not he, she or it is a party to the action.

(4) No damages, contribution or indemnity for the amount determined under subsection (3) to be caused by a person described in that subsection is recoverable in an action.

[9] In *Decision No. 1460/02*, the Panel noted that the Tribunal is not required to apply Board policy in right to sue applications, as section 126 of the Act refers to appeals, not applications. The Panel, however, also noted that it is important to maintain consistency with findings that might have been made had the case come to the Tribunal by way of appeal from a decision regarding entitlement. Therefore, Board policy continues to be relevant in right to sue applications. See *Decision No. 755/02*.

[10] In determining this application I have considered the following Board documents from the WSIB's *Operational Policy Manual* (OPM):

- OPM Document No. 12-02-01, entitled "Workers and Independent Operators"

(v) Analysis

[11] The case materials included a memo from a member of the Tribunal staff, indicating that she had carried out a "status check" to determine the status of the applicant TC Inc., with the Board. The memo indicated that, in response to the Tribunal's status check, the Board had advised the Tribunal that TC Inc. was an active Schedule 1 employer with a coverage start date which preceded the date of the respondent's accident by several years. At the hearing, the parties agreed that TC Inc. was a Schedule 1 employer as of the date of accident.

(a) Worker or independent operator?

[12] On the question of whether, at the time of the accident, the respondent, Mr. C., was a "worker," as defined by the Act, or alternatively, an independent operator, counsel on behalf of the respondent took the position in the application that the respondent was an independent operator at the time of the accident. Counsel on behalf of the applicant took the position in the application that the respondent was a "worker," as defined by the Act, at the time of the accident.

[13] At the hearing, counsel for the respondent indicated that, in relation to the issue of whether, at the time of the accident, the respondent was a “worker” or an independent operator, he relied on the submissions which were included in the section 31 statement of the respondent. Those submissions included the following points:

- Mr. C. had established a numbered company through which he entered into a contract for service with TC Inc. TC Inc. made payments for work performed by Mr. C. to the numbered company and did not issue a T4 slip to Mr. C., and did not make deductions at source for matters such as Canada Pension Plan benefits or income tax;
- TC Inc. did not make payments to the Board for coverage of Mr. C.;
- Mr. C. negotiated a price per mile with TC Inc. for transporting freight;
- The trucks driven by Mr. C. were owned by TC Inc., however, according to their agreement, Mr. C. was responsible for paying for any damage incurred by Mr. C. to the trucks owned by TC Inc., and he had, in fact paid TC Inc. for such damage on two different occasions prior to the accident on January 11, 2014;
- Mr. C. was not trained or supervised by anyone on behalf of TC Inc.;
- While hauling a load for TC Inc., Mr. C. chose his own working hours, chose his own route, and was entitled to decline a load, if he wished to do so, and he had in fact declined a load on occasion;
- Mr. C. was paid by straight commissions at \$0.42 to \$0.45 per mile, and all payments were paid by TC Inc. to the numbered company established by Mr. C.; and
- Mr. C. held all of the licenses required to perform his work.

[14] At the hearing, counsel on behalf of the applicant made submissions in support of the conclusion that Mr. C. was, at all material times a worker as defined by the Act. In his submissions, counsel on behalf of the applicant relied on answers given by Mr. C. at an Examination for Discovery, conducted on February 16, 2017. References below to “the transcript” refer to those answers. Counsel on behalf of the applicant made the following points in support of the applicant’s position:

- The trucks driven by Mr. C. while carrying goods on behalf of TC Inc. were owned by TC Inc., a point which is not in dispute;
- In keeping with the transcript, while working on behalf of TC Inc., TC Inc. paid for the cost of fuel and insurance for the truck driven by Mr. C.;
- In keeping with the transcript, TC Inc., paid for the cost of repairs and maintenance of the truck driven by Mr. C., with the exception, that Mr. C. was responsible for any damage to the vehicle or load which was caused by Mr. C.;
- In keeping with the transcript, Mr. C. worked full-time for TC Inc., typically driving about 70 hours per week for TC Inc.;

- Although it was Mr. C.'s contention that he was at liberty to drive for another company, according to the transcript, during the period when Mr. C. drove for TC Inc., he did not perform work for any other business;
- Although it was Mr. C.'s contention that he was at liberty to refuse a load from TC Inc., in keeping with the transcript, he did this on only one occasion, when he refused part of a load;
- Although it was Mr. C.'s contention that he was at liberty to choose any route for delivery of freight on behalf of TC Inc., in keeping with the transcript, he was paid mileage on the basis of the fastest route;

[15] As noted above, the case materials included the Board's OPM Document No. 12-02-01, entitled "Workers and Independent Operators." The policy document provides definitions of a "contract of service" and a "contract for service," and provides information about the "Organizational test," which the policy document applies as a basis for determining whether a party is an independent operator or a "worker." In this regard, the policy document states:

Guidelines

General

A "**contract of service**", or employer-employee relationship, is one where a worker agrees to work for an employer (payer), on a full- or part-time basis, in return for wages or a salary. The employer has the right to control what work is performed, where, when, and how the work is to be performed.

Workers – those who work under contracts of service – are automatically insured and entitled to benefits if injured at work. In addition, their employers must pay premiums to the WSIB.

A "**contract for service**", or a business relationship, is one where a person agrees to perform specific work in return for payment. The employer does not necessarily control the manner in which the work is done, or the times and places the work is performed.

Independent operators – those who work under contracts for service – are not automatically insured or entitled to benefits unless they voluntarily elect to be considered "workers" and apply to the WSIB for their own account and optional insurance. (See 12-03-02, Optional Insurance.) Independent operators may not be insured through the hiring company's (payer's) WSIB account.

Organizational test

The organizational test recognizes features of control, ownership of tools/equipment, chance of profit/risk of loss, and whether the person is part of the employer's organization, or operating their own separate business.

....

Incorporation

The WSIB does not automatically consider incorporation, on its own, as a sole factor in determining whether a person is an independent operator. One-person corporations still need to apply for independent operator status by completing the appropriate industry-specific or general questionnaire. The WSIB looks at whether the person operates a business or not, rather than just the incorporated structure of the operation.

[16] Under the heading, "Characteristics of workers and independent operators," the policy document sets out a chart, which lists factors which may be considered in applying the

“Organizational test” to determine whether a party is a “worker” or an independent operator. Some of the factors addressed in the chart, which may be applicable in this application, include “Instructions,” “Training/supervision,” “full-time work,” “licenses,” and “serving the public.” In addition, under the heading “Other applicable criteria,” the policy document lists a second set of factors, which are also to be considered by the decision maker, but will be given less weight in determining whether a party is an independent operator or a “worker.”

[17] For each factor, the chart sets out characteristics related to the factor which reflects the respective roles of a worker, or alternatively, an independent operator. For example, in relation to the factor “Full-time work”, the policy document notes that “workers” typically “must devote full-time to the business of the payer” and that workers are “restricted from doing work for other payers,” while alternatively, independent operators are “free to work when and for whom they choose.”

[18] The policy document also includes a separate section on “Profit or Loss,” which is highlighted as a key factor in determining whether a party is a “worker” or an independent operator. In this regard, the policy document provides:

Workers have the right to make decisions that, in comparison to those that the employer makes (or has the right to make), have an insignificant or lesser influence on the workers' opportunity to make a profit or suffer a loss in doing the work.

Independent operators have the right to make decisions that, in comparison to those that the hiring company makes (or has the right to make), have a significant influence on their opportunity to make a profit or suffer a loss in doing the work.

[19] The policy document indicates that status shall be determined as follows:

Determining Status

The decision-maker reaches a decision about the status of the person. When the criteria indicate the person has a separate business that is not integrated into the employer's business, then the person is an independent operator. If the decision-maker finds

- that the person is subject to a high degree of control in doing the work, and
- that the decisions the person makes have an insignificant effect on the person's own opportunity to earn a profit or suffer a loss

the person is a worker and does not have a separate business, even if a review of “Other applicable criteria” suggests that some independence is afforded the person in the relationship with the employer.

[20] I note that when applying the Organizational Test, in many cases, a party may demonstrate characteristics which are consistent with being a “worker” in relation to some factors, while, at the same time, demonstrate characteristics which are consistent with being an independent operator, in relation to other factors. It follows that in a case where the factors are “mixed” as between reflecting status as a “worker” and as an “independent operator,” it will be necessary for the decision-maker to conclude which determination best reflects the overall status of the party.

[21] I find that, in this case, although the factors are “mixed” to an extent, overall, the preponderance of evidence supports a finding that the status of Mr. C. is most closely associated with that of a “worker.” Accordingly, I find that Mr. C is a worker for the purposes of this application.

- [22] In this regard, I note that, at the material time, Mr. C. worked on a full-time basis for TC Inc., typically working 70 hours or more, exclusively for TC Inc. I find that, whether or not Mr. C. was at liberty to work for other payers, while at the same time working for TC Inc., the fact that, at the material times, he did not actually perform any work for other payers, and worked exclusively for TC Inc., strongly reflects his status as a “worker.”
- [23] Another factor which strongly reflects Mr. C.’s status as a “worker “ is the fact that the truck driven by him while performing his work was owned by TC Inc. In cases where the status of a truck driver requires a determination, Tribunal jurisprudence has indicated that the ownership of the truck being driven is a strong indicator of status, and that where a party hauls freight for the owner of the truck, weight should be given to the conclusion that the party is a “worker” (see, for example, *Decision No. 1370/06* and *Decision No. 1386/15*).
- [24] The Tribunal’s jurisprudence highlights the conclusion that, where a party is not the owner of the truck, the party does not bear significant financial risk, and does not have a significant opportunity to obtain profit or bear a loss. I find that this was the case in the circumstances of this application. In this case, in addition to owning the truck, TC Inc. paid for fuel, insurance and vehicle maintenance, and these costs were not borne by Mr. C. Mr. C. drove the assignments provided to him by TC Inc. and his earnings were essentially determined by the amount of driving he was assigned, thereby limiting his opportunity for profit or loss. Although I accept the fact that Mr. C. could refuse to haul a load, this occurred rarely, and in my view does not significantly change the relationship between Mr. C. and TC Inc. I am also not persuaded that Mr. C. should be considered to have been an independent operator by the fact that Mr. C. was responsible for damage which he caused to the truck or freight. I note that this occurred infrequently. I find that this fact did not significantly change Mr. C.’s opportunity for profit or loss, and it does not cause me to conclude that he was an independent operator.
- [25] I have considered the factors advanced in the submissions made by counsel for the respondent, however, I am not persuaded that Mr. C. should be considered to have been an independent operator on the basis of such factors. Although Mr. C. established a corporation to receive the earnings from his driving, and TC Inc. did not make source deductions from his earnings, and this may reflect an intention of the parties to establish a relationship in which Mr. C. was an independent operator, these factors are superseded by consideration of the Organizational Test, which attributes weight to the level of control exercised by the respective parties, and to the question of whether the subject party has an opportunity for profit or loss. As I have indicated, I conclude that these considerations apply and result in the determination that Mr. C. was a “worker” and not an independent operator.

(b) In the course of employment?

- [26] The other significant factor to be determined in this application is whether, at the time of his accident, Mr. C. was in the course of his employment. In his submissions at the hearing, the respondent’s representative noted that the respondent’s slip and fall accident occurred 15 to 20 minutes after he had parked the truck, in that he was waiting for his daughter to pick him up for about that length of time before he slipped on the ice, apparently attempting to retrieve a personal item.
- [27] Counsel for the respondent referred to the transcript of an Examination for Discovery of the person who was the President of TC Inc. This examination was conducted on February 16, 2017. The transcript indicated that the President agreed that “once [Mr. C.] parked

the truck that evening when he got back and left the truck at that point he is not being paid anything whether he takes half an hour to leave the yard, two minutes to leave the yard or an hour to leave the yard” and that after Mr. C. left the truck “his responsibilities to [TC Inc.] are over at that point.” I understand the submissions on behalf of the respondent to mean that after Mr. C. had parked the truck, he was not being paid, his employment duties had concluded, and that he was no longer in the course of employment.

[28] On this basis, counsel submitted that, at the time of his accident, which occurred after Mr. C. left the truck, entered his daughter’s vehicle, and then headed back out to see if he had left a personal item on the ground, he was not in the course of his employment. It was also his submission that, in going back out from his daughter’s vehicle to retrieve a personal item, he was undertaking a personal activity for his own purposes, that there was no employment-related purpose to his activity at the time of his accident, and this is indicative of his not being in the course of employment at the time.

[29] At the hearing, counsel on behalf of the applicant referred to *Decision No. 1691/16*, for the proposition that where a worker leaves her work premises at the end of the workday and sustains injuries as the result of a fall in an adjacent parking lot, which is under the control of the employer, the worker’s presence in the parking lot should be deemed incidental to her employment, and the worker will be found to be in the course of employment at the time of the accident. The decision stated, beginning at paragraph 17:

As noted above, the only issue in this appeal is whether the worker was in the course of her employment at the time of the accident. Although Mrs. Nobili was on her way home at the time of the accident, she had not yet entered her car and begun to drive. While there are numerous cases regarding accidents that occur when an individual is driving to and from work, that line of cases are not applicable in this instance because the accident occurred in a parking space outside of the worker’s place of employment before the worker entered her car. If the worker was in the employer’s parking lot for reasons which are reasonably incidental to her employment, then the worker will be regarded as being in the course of employment. Being in an employer’s parking lot for the purpose of coming to work or leaving work is regarded as reasonably incidental to employment (see *Decision No. 2675/08*). In such cases, the “premises test” is applied to determine if the worker was in the course of her employment at the time of the accident. The premises test was described as follows in *Decision No. 643/02*:

The majority of Tribunal decisions on accidents occurring in parking lots have favoured what is referred to as the premises test. The premises test, which emphasizes the geographic location of the accident, has been treated as establishing that a personal injury by accident sustained on the employer’s premises occurs in the course of employment – unless the worker’s activity is sufficiently remote from normal employment functions that the activity and resulting injury cannot be characterized as reasonably incidental to employment.

[30] *Decision No. 1691/16* also cited several other Tribunal decisions which applied the “premises test,” and concluded that when arriving or leaving work, a worker who sustains injury in a parking lot controlled by the employer, the worker will be deemed to be in the course of employment, notwithstanding the fact that, at the time of the accident, the worker had not begun working, or had completed the workday, as the case might be.

[31] I have considered the submissions provided by counsel for the respondent that, notwithstanding the “premises test,” Mr. C. should not be considered to have been in the course of his employment at the time of this accident due to both the length of time which passed

between him parking the truck and completing his workday (i.e., 15 to 20 minutes), as well as the fact that the accident occurred when he was undertaking a personal activity (i.e., leaving his daughter's vehicle to retrieve what he believed to be a personal item) which was not related to work.

[32] I find that *Decision No. 1691/16* as well as other decisions referenced therein, which applied the “premises test” are applicable in this case, and I find that when Mr. C. slipped in TC Inc.'s yard, his presence in the yard was incidental to his employment, and he was therefore in the course of employment at the time of the accident.

[33] I note that the Respondent's section 31 statement refers in several instances to “[TC Inc.'s] yard” and “[TC Inc.'s] premises,” and does not take the position that the location of the accident was outside of TC Inc.'s control, or that the yard was not owned by TC Inc. It is not contentious in this application that the yard where the accident occurred was owned and controlled by TC Inc., and I find that the yard was owned and controlled by TC Inc.

[34] Although the decisions which apply the “premises test” typically reflect circumstances where a worker has left a workplace which is a building and has fallen in an adjacent parking lot, I conclude that the circumstances of this application, in which Mr. C., whom I have found for reasons provided above, was a “worker” left a truck, and fell in the employer's truck yard, are analogous to the “premises test” cases, and that the same principles should be applied.

[35] I find that the only reason that Mr. C. was present in TC Inc.'s truck yard was because he was leaving his employment at the end of his work assignment. Mr. C. was not present in the truck yard for any other significant purpose. The fact that he was present in the yard for about 15 to 20 minutes after he finished his driving assignment does not vitiate the reason for his presence in the yard. He was not loitering in the yard, or carrying out any other personal activity or errand, but rather, he was waiting to be picked up from work by his daughter. I conclude that the number of minutes that passed before she arrived does not change the fact that he was in the yard for reasons that were related to his work.

[36] I am also not persuaded that because Mr. C. was attempting to retrieve a personal item at the time of the accident that Mr. C. was present in the yard for personal reasons. The fact that he may have dropped a glove or a scarf in the yard, which he was attempting to retrieve when he fell, does not alter the fact that only reason he was in the yard at the time of the accident was because he was leaving work. Retrieving a personal item in these circumstances was reasonably incidental to leaving work, and leaving work was reasonably incidental to his employment.

[37] For these reasons, I find that Mr. C. was in the course of employment at the time of his accident.

(c) Conclusions

[38] For reasons that are provided above, I make the following findings.

- At the time of the accident, the respondent was a “worker” within the meaning of the Act.
- The applicant, TC Inc., was a Schedule 1 employer at the time of the accident.
- At the time of the accident, the respondent was employed by a Schedule 1 employer, namely TC Inc.

- At the time of the accident, the respondent was in the course of his employment.

[39]

In light of these findings, I conclude that Mr. C.'s right to sue TC Inc. is taken away by the Act.

DISPOSITION

[40] The application is granted. The right of action of the respondent Mr. C. against TC Inc. is taken away by the Act.

[41] Section 31(4) of the Act provides that a claim may be filed 6 months after a section 31 determination is made.

DATED: August 13, 2019

SIGNED: M. Crystal